

Licensee has no para 7.10 appeal; CGRF prepaid-meter award stayed

High Court of Judicature at Allahabad · Single Judge · 22 May 2017 · WRIT - C No. - 21505 of 2017 · **Notice issued; CGRF prepaid-meter award stayed till next listing.**

HEADNOTE

Writ by Agra Development Authority against a CGRF award directing removal of a prepaid meter for want of the apartment owner's prior permission. The Court observed that para 7.10 of the Electricity Supply Code, 2005 gives an appeal only to the consumer, not to the licensee or a person standing in that position, so ADA had no statutory appeal. Notice issued; operation of the 23 July 2016 award stayed. Whether the Forum was right to insist on prior permission left open.

FACTUAL SUMMARY

Agra Development Authority filed a writ against the Electricity Consumer Grievance Redressal Forum's order dated 23 July 2016 in Case No. 21A of 2016. The Forum had directed ADA to remove a prepaid meter installed at an apartment owner's premises in ADA Heights, Tajnagari Phase-II, and to reinstall a meter only after obtaining that owner's permission. ADA, which is not a consumer, challenged the award in the High Court. Notice was issued to the apartment owner; a later listing extended the stay.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

licensee appeal from CGRF

HOLDING

Para 7.10 of the Electricity Supply Code, 2005 confers a remedy of appeal on the consumer, not on the licensee or a person standing in that position. Agra Development Authority, not being a consumer, had no such appeal against the CGRF award directing removal of a prepaid meter, and the writ was entertained. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CGRF WAS RIGHT TO REQUIRE UN-INSTALLATION OF AN EXISTING PREPAID METER FOR WANT OF THE APARTMENT OWNER'S PRIOR PERMISSION

The Court said the Forum's view appeared over-technical and that merits required consideration, but issued notice and stayed the award without deciding the point. ¶ 3